

SYMPLY INC.
INDEPENDENT CONTRACTOR AGREEMENT

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INTRODUCTION

This independent contractor agreement, by and between Symply Inc. and Vivian Zhu, is effective as of January 21, 2020.

DEFINITIONS

Capitalized terms in this independent contractor agreement shall have the following definitions:

“This Agreement” means this independent contractor agreement.

“The Company” means Symply Inc.

“The Contractor” means Vivian Zhu.

“The Engagement” means the Contractor’s provision of services to the Company through the terms of this independent contractor agreement.

“The Parties” means the Company and the Contractor, jointly.

“Party” means either the Company or the Contractor individually, as the case may be.

“Parties” means the Company and the Contractor, jointly.

“Written Notice” means notice in writing delivered through any traceable means, including electronic mail to which the receiving Party responds.

BACKGROUND

1. The Company is a Delaware corporation.
2. The Contractor is an individual residing in the State of Connecticut.
3. The Company now wishes to engage the Contractor, and the Contractor now wishes to be engaged by the Company, to provide services through the Engagement.
4. Therefore, pursuant to consideration whose validity and sufficiency the parties acknowledge, the parties agree to the following terms and conditions.

TERMS AND CONDITIONS

SECTION 1: TERM OF THE ENGAGEMENT

SECTION 1.1: DURATION

The duration of the Engagement shall be perpetual until termination pursuant to this Section 1.

SECTION 1.2: TERMINATION

The Engagement will be at will. Either one of the Parties may terminate the Engagement at any time, with or without cause, by providing Written Notice to the other Party to that effect.

SECTION 2: THE CONTRACTOR'S OBLIGATIONS

SECTION 2.1: JOB TITLE

The Company may prescribe any job title or position to the Contractor at its own discretion.

SECTION 2.2: JOB DUTIES

The Contractor shall perform any job duties that the Company upon which the Parties may from time to time agree.

SECTION 2.3: COMPANY POLICIES

During the Engagement, the Contractor shall observe and abide by any other Company policies, procedures, and regulations as the Company may from time to time prescribe.

SECTION 2.4: CONFIDENTIALITY

During the Engagement, the Contractor may receive or otherwise be exposed to Confidential Information. All Confidential Information shall be the Company's property, with all rights thereto reserved by and to the Company. Unless the Company otherwise authorizes in a Written Notice, the Contractor shall use commercially reasonable efforts to prevent and mitigate the disclosure or dissemination of Confidential Information.

SECTION 2.5: INTELLECTUAL PROPERTY

During the Engagement, the Contractor may create, develop, or otherwise improve upon work that could fall under legal definitions of "intellectual property" under copyright, trademark, trade secret, or similar intellectual property laws. Any such work shall be deemed "work for hire" under sections 101 and 201 of Title 17, United States Code. The Contractor assigns to the Company the any and all proprietary rights over any such work which may not fall within the legal definition of "work for hire." The Company does not grant any license over the use of such work.

SECTION 2.6: TOOLS AND EQUIPMENT

Unless the Company otherwise agrees through a Written Notice, the Contractor shall provide its own tools, equipment, and other devices reasonably necessary to allow the Contractor to provide services under this Agreement.

SECTION 2.7: AGENCY AND INDEMNIFICATION

The Contractor shall only have the power to bind the Company as the Company authorizes the Contractor to do in Written Notices. The Contractor shall indemnify, defend and hold harmless the Company from and against any third-party claims, liabilities or expenses incurred on account of acts or omissions the Contractor takes in excess of its authority under this Section 2.6. Those shall include reasonable legal fees.

SECTION 2.8: INDEPENDENT CONTRACTOR STATUS

The Parties intend the Contractor to be an independent contractor – not an employee. No provision in this Agreement and no transaction resulting from the performance of this Agreement is intended to create an employment relationship, partnership, or joint venture between the Company and the Contractor. Any such transaction is null and void. The Contractor shall be solely responsible for procuring, reporting, maintaining and paying for its own tax liabilities, licenses, any insurance. The Company shall not provide the Contractor with any benefits.

SECTION 3: THE COMPANY’S OBLIGATIONS

SECTION 3.1: COMPENSATION

The Contractor’s probationary hourly rate shall be \$25.00 USD gross per hour, payable every two weeks until, at the latest, March 31, 2020. As of April 1, 2020, the Contractor’s initial hourly rate shall be \$30.00 USD gross per hour, payable every two weeks.

SECTION 3.2: REIMBURSEMENT

The Company shall reimburse the Contractor for any out-of-pocket expenses which the Contractor incurs in performing work toward the Engagement, so long as any such out-of-pocket expenses have been pre-approved by the Company prior to incurrence via a Written Notice.

SECTION 3.3: INDEMNIFICATION

The Company shall indemnify, defend and hold harmless the Contractor from and against any third-party claims, liabilities or expenses incurred from acts or omissions the Contractor takes while performing his obligations under this Agreement. Those shall include reasonable legal fees.

SECTION 4: MISCELLANEOUS

SECTION 4.1: GOVERNING LAW

This Agreement shall be governed, construed and interpreted in accordance with the laws of the State of Delaware, regardless of conflicts of laws. This Agreement supersedes any default provisions in Delaware law to the extent the law allows.

SECTION 4.2: JURISDICTION AND VENUE

Any action to interpret or enforce this Agreement shall be venued in the Courts of Chancery of Kent County, Delaware. The Parties hereby irrevocably and unconditionally consent to that court's personal and subject-matter jurisdiction, and irrevocably and unconditionally waive any constitutional right to a jury trial.

SECTION 4.3: INJUNCTIVE AND EQUITABLE RELIEF

The Parties agree that a breach of this Agreement would cause irreparable harm and significant injury to the Company. The Parties also agree that any such harm and injury would be difficult to value or compensate in terms of monetary damages. Therefore, the Parties agree that the Company has the right to enforce this Agreement by injunction, specific performance and other equitable remedies without needing to show proof of actual or specific monetary harm to the Company.

SECTION 4.4: SEVERABILITY

If any portion of this Agreement is deemed invalid or unenforceable for any reason, that portion shall be severed – and the remainder of this Agreement shall remain in effect and in full force.

SECTION 4.5: COUNTERPARTS

This Agreement may be executed in counterparts, with the sum of all counterparts constituting the entire, original instrument.

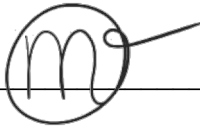
SECTION 4.6: ENTIRETY AND AMENDMENTS

This Agreement contains the entire arrangement of the Parties concerning its subject matter. It supersedes any prior or simultaneous oral or written arrangement between the parties on this subject matter. This Agreement can only be amended or superseded through a written instrument signed by both Parties.

SIGNATURES

**ON BEHALF OF THE COMPANY,
SYMPLY INC.**

Marcel S. Oliveira
Printed Name


Signature

January 22, 2019
Date

**ON BEHALF OF THE CONTRACTOR,
VIVIAN ZHU**

VIVIAN ZHU
Printed Name


Signature

1/22/2020
Date